

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY (BPPRA),
QUETTA

PRC APPEAL NO. 17/ 2025

M/s A.H.S. Brothers,
Through its Counsel,
Mr. Akbar Shah Advocate

...Appellant

Versus

1. Government of Balochistan,
Through Secretary, Public Health Engineering Department, Quetta.
2. Chief Engineer (North), Public Health Engineering Department, Quetta.
3. Superintending Engineer (Loralai Area Circle), Chairman CRC.
4. Executive Engineer, PHE Zhob Division, Member Procurement Committee.
5. Members, Procurement Committee, PHE Division Zhob.

... Respondents

Quorum

1. Habib ur Rehman Jamot.....MD BPPRA / Chairman
2. Mubashir Ali Khan (FCIPS).....Procurement Specialist (Goods & Services) BPPRA / Member
3. Junaid Shah.....Procurement Specialist (Works) BPPRA /Member
4. Iftikhar Ahmed Mir..... Retd. Chief Engineer /Technical Member
5. Abdul Hayee Baloch.....Advocate /Private Member

DECISION

Date of Decision: 21st November 2025

1. Background

This Appeal was filed by **M/s A.H.S. Brothers** under **Rule 56-A** of the **Balochistan Public Procurement Rules, 2014** against the **Evaluation Report** dated **01-10-2025**, pertaining to **TSE No. 252608810743**, concerning the project titled:

"Construction of Water Supply Scheme near Tablighi Markaz, Repair of Water Storage Tanks, Killi Shekhan, Provision of WSS to GPS Manzakai, Providing and Laying of HDPE Pipelines in Shamsi Colony Zhob City, and 12 Solarised WSS for Qamerdin Karez Zhob," With an estimated cost of **Rs. 63,172,000/-**.

The Appellant alleged that the procurement process suffered from serious procedural and legal irregularities, including violation of **Rule 15** of the BPP Rules, 2014, and that the declared lowest bidder, **M/s Nawabzada Zulqarnain Jogezi & Sons**, failed to meet mandatory bid requirements.

2. Appellant's Contentions

The main grounds raised by the Appellant were as follows:

1. That the tender was **not advertised in newspapers**, which is a **mandatory requirement under Rule 15(2) & (3)** of the BPP Rules, 2014.
2. That the successful bidder, M/s Nawabzada Zulqarnain Jogezi & Sons, failed to provide **rate analysis** despite quoting a rate **more than 10% below the estimated cost**, violating **Clause 40** of the evaluation criteria.
3. That the same bidder also failed to furnish the **Bank Guarantee/CDR** required under **Clause 42** of the bidding documents.
4. That the **Complaint Redressal Committee (CRC)** failed to decide the Appellant's complaint dated **02-10-2025**, thus denying the right to fair trial under **Article 10-A** of the Constitution.

The Appellant sought annulment of the evaluation report, declaration of Mis Procurement and qualification of its own bid.

3. Respondents' Version

Upon issuance of notice, the respondents appeared and submitted a written reply. Their key points were:

1. That the tender was duly submitted to the **DGPR for publication** and also uploaded on the **BPPRA website**, which, according to them, satisfied the requirements of **Rule 15**.
2. That the Appellant **did not raise any objection at the time of bidding**, thereby accepting the process.
3. That the Appellant **approached the PRC without awaiting the decision of the CRC**, making the Appeal **premature**.
4. That the entire procurement process was **transparent**, properly evaluated, and duly approved by the Competent Authority.

4. Proceedings Before the Committee

After hearing both parties, the Committee examined the tender record, evaluation report, and written submissions. During the pendency of proceedings — and after preliminary observations of the Committee indicating apparent procedural irregularities on the part of the procuring agency — the Appellant **filed an application seeking withdrawal of the Appeal**, without assigning any justifiable reason.

It was observed that despite the Appellant's allegations being **prima facie supported by the record** (particularly concerning advertisement and mandatory bid documentation), the Appellant chose to withdraw the appeal, thereby causing unnecessary consumption of the Committee's time and resources.

5. Observations of the Committee

Upon careful examination of the record, the Committee noted the following:

1. That the **Tender was not advertised in newspapers**, contrary to **Rule 15(2) & (3)** of the BPP Rules, 2014. Since the estimated cost exceeded Rs. 2 million, publication in at least two widely circulated daily newspapers (one Urdu, one English) was **mandatory**, and failure to do so tantamount to **mis-procurement**.
2. That the successful bidder **did not attach rate analysis or Bank Guarantee/CDR** as required under **Clauses 40 and 42** of the evaluation criteria.
3. That the **CRC** failed to decide the Appellant's complaint, which reflects **non-compliance with Rule 56** of the BPP Rules.

Despite these apparent irregularities, the Appellant chose to **withdraw the Appeal** after utilizing the forum's time while Respondents had been duly summoned along with record.

6. Findings

The Committee is of the considered view that:

- The procurement process, as conducted by the Respondents, was **not fully in conformity with the mandatory provisions of the BPP Rules, 2014**, and requires administrative scrutiny by the Department.
- The act of the Appellant in filing and subsequently withdrawing the Appeal **without justification** has caused **wastage of official time and resources**.
- Such conduct merits imposition of **cost**, to discourage abuse of statutory forums.

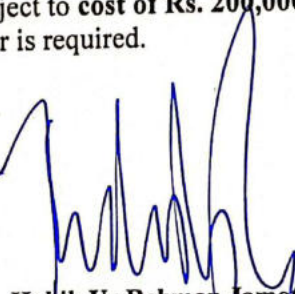
7. Order

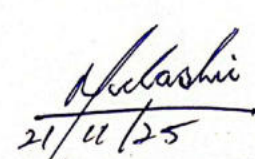
In light of the foregoing, the following order is passed:

1. The **application for withdrawal** of the Appeal filed by **M/s A.H.S. Brothers** is **accepted**, and accordingly, the Appeal stands **disposed of as withdrawn**.
2. However, in view of the Appellant's conduct and the unnecessary consumption of the Committee's time, a **cost of Rs. 200,000 (Rupees Two Hundred Thousand only)** is imposed upon the Appellant, to be deposited in the official account of the **Baluchistan Public Procurement Regulatory Authority (BPPRA)** within **15 days** from the date of this order..
3. The PRC expects the **CRC** to decide complaints **strictly within the prescribed time limits** in accordance with **Rule 56** to avoid denial of due process to bidders.

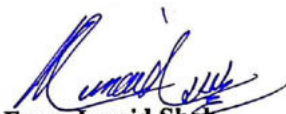
8. Conclusion

The Appeal stands **withdrawn** subject to **cost of Rs. 200,000**, with the above directions to the Procuring Agency. No further order is required.

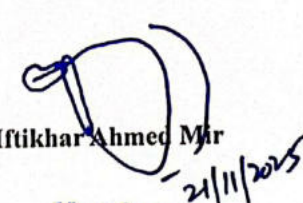

Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA) 21/11/2025.


21/11/25
Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA


21/11/2025
Istikhar Ahmed Mir
Member
Procurement Review Committee
BPPRA


Abdul Hayee Baloch
Member
Procurement Review Committee
BPPRA